IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 5

CP (CAA) No. 14/Chd/Pb/2023
(2nd motion)

IN THE MATTER OF:

Akm Real Estate Developers Private Limited …Transferor Company

Vs.

Digvijay Chemicals Limited …Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 06.12.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner : Mr. Rahul Jogi, Advocate
Ms. Deepali Garg, PCS

For the Income Tax Department : Mr. Yogesh Putney, Senior Standing Counsel (for Transferor Company No. 1)
Ms. Urvashi Dugga, Senior Standing Counsel (For transferor Company No. 2 and Transferee Company No. 1)

For the Registrar of Companies : Mr. Vineet Khatri, Company Prosecutor

For the Official Liquidator : Mr. Edward Augustine George, Advocate

ORDER

In pursuance of order dated 13.11.2024, Compliance affidavit has been filed by learned counsel for the petitioner companies vide Diary No. 01045/19 dated 22.11.2024. The same is taken on record. It is noted that the FSSAI was served through registered post on 17.10.2024 but no response has been received so far from the FSSAI Department. Similarly, the Excise Department, Punjab was served through

Excise and Taxation Commissioner, Punjab on 19.11.2024. However, one month's time has not been expired for the reply of Excise Department, let the same be awaited till the next date of hearing.

In the meantime, it is stated by learned counsel for the petitioner that appeal has been filed against the demand of the Income Tax Department for the different financial years starting from 2017-18 to 2022-2023 qua transferee company before the Commissioner of Income Tax. Learned counsel for the petitioner is directed to file the status of the appeal within two weeks and Mrs. Urvashi Dugga, senior standing counsel for the Income Tax Department is directed to confirm this fact with regards to the pendency of appeal before the next date of hearing. List the matter on 03.01.2025 in supplementary list.

-sd-
(UMESH KUMAR SHUKLA)
MEMBER (T)

-sd-
(HARNAM SINGH THAKUR)
MEMBER (J)

SM